

25STCV17070 25STCV17070

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-08-25

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Case Number: 25STCV17070 Hearing Date: August 25, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 25, 2026

Case Name: Shabsin v. Camara, et al.

Case No.: 25STCV17070

Matter: Motion to set OSC re: contempt

Moving Party: Plaintiff Francine Shabsin

Responding Party: Defendant Mariama Camara

Notice: OK

Ruling: The Motion is denied, but Camara is ordered to move an additional

portion of the fence along the access route back 3 feet within 7 days.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

Plaintiff Francine M. Shabsin filed a verified Complaint against Defendants Mariama Kabele Camara and Sheldon Dramin for prescriptive easement, equitable easement, easement by implied reservation, and declaratory and injunctive relief. Plaintiff contends that her real property can only be accessed by a dirt access road that partially extends upon Defendants' property and that she has acquired an easement to use this dirt access road.

On June 20, 2026, Judge Goorvitch entered a TRO in this matter and on July 10, 2025, entered an identical preliminary injunction. The order is as follows: Defendants are "are restrained and enjoined from: installing, constructing, and/or erecting any sort of barrier along their property line in such a manner that would prevent Plaintiff from accessing the upper portion of Defendants' property where Plaintiff established a pathway to park her vehicle and access her home. . . . The defendants shall remove enough of the fence across the access road to permit Plaintiff ingress and egress with her vehicle. In the alternative, the defendants may comply with this order by installing a gate in the fence and giving Plaintiff the combination/key to any lock. The defendants shall do so within 24 hours."

Plaintiff now seeks an OSC re: contempt, contending that Defendant failed to move enough of the fence for her to access her property.

Defendant Camara argues that "Judge Goorvitch wrote into the temporary restraining order . . . that Defendants 'shall remove enough of the fence across the access road to permit Plaintiff ingress and egress with her vehicle,' . . . Not all of the fence. Plaintiff . . . concedes that she parks her vehicle and reaches her home. (Shabsin Decl., ¶¶ 12, 21.) The order protects Plaintiff's ability 'to park her vehicle and access her home.' Her grievance is that she parks farther away and walks fifty additional feet. (Id., ¶ 21, ln. 19.) That may be a real burden. It is not disobedience of the Court's order."

Because the preliminary injunction does not specify how much of the fence had to be removed it appears it would be draconian to hold an OSC re: contempt when in fact Defendant did move some of her fence.

On the other hand, it appears the current state of facts is contrary to the spirit of the preliminary injunction. It should not be that Plaintiff must walk an additional 50 feet. The fence should be moved 3 feet back all the way along the access road length that was actually used by Plaintiff in the past.

The Court believes the most equitable solution would be to deny the Motion for an OSC and instead order Defendant to move an additional portion of the fence back 3 feet. The fence should be moved along the area that Plaintiff previously parked. Plaintiff can point this location out to Defendant. This should be done within 7 days.

Moving party to give notice.